

TRYON v. ANGELS GUN CLUB, INC.

17CV42160

CROSS-COMPLAINANT'S MOTION FOR LEAVE TO FILE FIFTH AMENDED CROSS-COMPLAINT

Cross-Complainant Angels Gun Club, Inc., moves for leave to file a Fifth Amended Cross-Complaint to include a new Cause of Action for Quiet Title.

The court generally affords great liberality to a party to file an amended pleading. (See *Cal. Gasoline Retailers v. Regal Petroleum Corp.* (1958) 50 Cal. 2nd 844, 851.) However, if a proposed amendment or a party suffers prejudice due to unnecessary delay in seeking the amendment, the court may refuse permission to file an amended pleading. Cross-Defendant argues that Cross-Complainant has unjustifiably delayed the request and that actual prejudice exists.

In considering the questions of unnecessary delay and prejudice to cross-defendant, the court previously was persuaded that it is necessary to include all family members on the title to the real property in the pleadings for any enforceable resolution. The court also took into account declarations, which clarified issues, even though they arguably exceeded the scope of the underlying motion.

The Court notes that the initial 2019 Cross-Complaint title the first two causes of action: "Quiet Title – Prescriptive Easement"; and "Quiet Title – Declaratory Relief." The First Amended Complaint adds a specific "Quiet Title" cause of action. This nomenclature continues in Second Amended Complaint. The appended "Quiet Title" and separate cause of action was dropped at Cross-Complainant's request to file a Third Amended Cross-Complaint, and ruled, in part:

Gun Club's request to delete the cause of action for quiet title is GRANTED. Removing this cause of action does not unduly prejudice Tryon.

Gun Club's requests to amend the cross-complaint to change Tryon's interest from an easement to a license based on the deed and to add an allegation seeking to terminate that license is GRANTED. Either party can argue whether the parties' intent was to form an easement or to grant a license. Both sides can present their arguments at any appropriate procedural forum. (Ruling, June 12, 2020.)

The Third and Fourth Amended Complaints did not include separate Quiet Title Causes of Action. However, all versions of the cross-complaint raised the same Land-Swap Agreement and equitable rights and remedies. Regardless of whether it's a separate cause of action or an equitable remedy, the court still may consider the disputed facts and render a decision on these property rights, equitable or legal.

Cross-complainant made the argument in requesting leave to file its third amended complaint:

“[T]he Club’s quiet title cause of action is superseded and enveloped by the asserted breach of contract and declaratory relief actions. Simply put, if the Club prevails in these causes of action, the quiet title action is duplicative and ancillary. There is no reason to further complicate this case, and confuse the jury who will eventually hear the case.” (Defendant Angels Gun Club, Inc.'s Motion For Leave To File Third Amended Cross-Complaint, Memorandum of Points and Authorities, filed April 27, 2020, pg.5.)

Cross-Complainant’s current effort to restore a cause of action for Quiet Title is unnecessary and from this Court’s perspective reflects excessive pleading practice, as Cross-complainant is now seeking to come full circle and reinstate a cause of action that the very same party previously formally brought before this Court to delete. The opposition from the cross-defendants brings up procedural issues and a high potential for prejudice to any added or existing cross-defendants.

The existing pleadings put at issue equitable, title, legal, and beneficial interests in the parties’ property, and seek the right to formal legal title.

The Court **DENIES** Plaintiff’s Motion for Leave to File Fifth Amended Cross-Complaint

The Clerk shall provide notice of this Ruling to the parties forthwith. Cross-defendants are to submit a formal Order in compliance with Rule 3.1312 in conformity with this Ruling.